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The importance of environmental protection and sustainable development

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Abstract

The paper analyses the concept of sustainable development that has determined the society to recognize and become aware of the importance of environmental factors as well as of the functions and services that the environment offers.

Sustainable development has as its goal the improvement of the negative effects of environmental pollution having in regard the need to satisfy present generation needs while ensuring the liveliness of the environmental factors for future generations.

The integration of the issue of the environment within the European Community policy is the main modality for ensuring sustainable development.

In this paper, we want to prove that sustainable development must be considered in the determination of the line of action both at national level as well as at the level of the entire European process.

Regarding the functions and the importance of forests, the problem of sustainable development in this matter represent a priority and this is why both the Romanian and the European legislator have adopted specific legal provisions in this area.

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1. Considerations concerning the protection and sustainable development of the environment. Particularities.

The problems of environmental protection and of sustainable development of material resources represent, at present, a common preoccupation of all the states of the world, a global-wide objective. To this end, a series of international provisions with universal vocation have been adopted by means of collaboration and cooperation among states. The international measures regarding environmental protection have been provided for, stated, or recognized at the level of international general or conventional law.

The concept of sustainable development has made society conscientious and, in the same time, recognize, the role and importance of environmental factors as well as of the functions and the services the environment provides (Bortelmus, 1986). The sustainable development has to be taken into consideration in establishing the line of action at the level of the whole communitarian process, establishing exigencies regarding the information about the objectives on long and short term that are looked after in all five domains that have an impact on the environment.

By *durable development* or *durable way of life* it is understood an assembly of general assembly of human activities, taken into consideration in their dynamic form, also the biosphere in its own dynamic form. These relations have to allow the continuity of human life, to allow the satisfaction of each individuals own needs and also the development of the variety of cultures, but in such a way in which the changes made depending on the nature of the human activity comply with certain limits, in such a way in which the bio-physical context is not harmed (Marchello, Perrini, Serafini, & Diritto dell'Ambiente, 2002, p.15; Kiss & Beurier, 2010).

The situation regarding the environment protection and durable development is one of great actuality and importance (Comélian, 1994). The definition of the durable development concept has to be correlated with two basic concepts:

- the protection capacity that the planet has, characterized by an exact natural rhythm, a complex bio-physical and biochemical dynamic and by other certain characteristics (of the territory, of the absorption, of the biological type, etc.), by which is defined a system in which the individual lives like in a closed system.
- the durable programming has to be associated with the social programs of economical, technical, social development following objectives compatible with the ecologic succession, in such a way as to guaranty the satisfaction of day to day needs without compromising the future generations.

A good programming of the durable development has to fit in the notion of "protection capacity" and to be built with the respect of the durable efficiency principle, which supposes that in those situations in which the individual damages some natural resources that can be repaired he has to take measures in order for them to regenerate, and with the respect of the principle of the intervention for compensation, meaning that he who uses or takes a natural capital that can not regenerate has to ensure a balance by a compensatory way.

Durable development has to be made in such a way as to reduce the negative outcomes of the artificial structures, simultaneously satisfying some of the needs of the people, and guaranteeing the liveliness of future generations as well (D.Mazilu, 2006). Furthermore, when elaborating and promoting environmental protection policies, the European Community and the member states, according to their competences that have been established through the constitutive treaties, cooperate with third party states as well as with judicial institutions and international and regional organizations that also have attributes within this domain.

The European Union has played a crucial role at an international level, by patterning environment related global policies, having signed and ratified a series of international conventions regarding environmental protection. Also, the United Nations having supervised the unfolding of some of the most important conferences concerning the environment has had a vital contribution in the field of environmental protection and preservation (Kiss, 2000; Maljean-Dubois & Mehdi, 1999). The programming of the protection and durable development has to be affirmed at international, regional and national level, as well concerning the entire public authorities' ensemble (Amory, 2001).

At international level, the Rio Declaration in 1992 affirms the will of the international community to implement and favor the protection and durable development of a global ecological and durable economy. Similarly, the Brundtland Commissions Report of 1986 (Brundtland, 1987), underlines the importance that environmental protection has, following durable development. At the same United Nations Conference on Environment and Development (UNCED) held in Rio de Janeiro, Brazil, 3 to 14 June 1992, another important document was adopted named Agenda 21. This document draws the fundamental principles of sustainable development. Both documents mentioned afore unveil a holistic approach of environmental protection that entails a merger between environmental protection and economic development, as circumscribed in the principles of sustainable development. This was in fact the subject of the Rio Conference on Environment and Development, Conference that, beyond having created the Rio Declaration on Environment and Development and the action program for the XXI century – Agenda 21 - has led to the conclusion of two fundamental treaties in the environmental field, under the supervision of the United Nations - the United Nations Framework Convention on Climate Change of 1992 and the 1992 Convention on Biological Diversity. Amongst other, the objective of the

Conference was also to adopt a mandatory text (with legal force) on forest and desert protection. However, finally, only a soft law document, therefore lacking mandatory effect, was adopted regarding the protection of forests - Statement of principles for the Sustainable Management of Forests.

The 2002 Conference from Johannesburg on protection and durable development also aimed to analyze and examine the progress that has been made in the field of environmental protection and to identify the means for better promoting the integration of the global development program, as well as the global protection of the environment. The conference adopted urgent measures for the development and urging for immediate action, especially regarding the water and energy resources. However, the international summit on sustainable development from Johannesburg was not intended to bring about a institutional reform in the environmental field and did not conclude its works with the adoption multilateral law-convention, even if it is undeniable that it had a substantial contribution, *inter alia*, to the development of the South Africa regions. (Johannesburg Declaration on Sustainable Development and the Implementation Plan, www.johannesburgsummit.org). Also, with the occasion of the G8 meeting of the ministers of environment, at Trieste in March 2001, was underlined the necessity of integration of the environmental policies along with the social and economic ones, with the occasion of the elaboration of and formulation of the national strategy of durable development.

The United Nations Conference on Sustainable Development held at Rio de Janeiro, Brazil, 20 Jun 2012 - 22 Jun 2012 was named Rio+20 Summit for it took place 20 years after the 1992 Rio de Janeiro Earth Summit that has allowed, as already mentioned, the adoption of the first international documents, mandatory or not, on sustainable development : two international Conventions (one regarding the fight against climate change and the other concerning the safeguarding of biodiversity) and also an Action Program that brought together many of the Recommendations for the states in the economic, social and environmental areas. In 1998, with the Kyoto Protocol, industrialized countries (with the exception of the U.S.A.), have accepted for the goal of sustainable development to comply to the engagement they took at Rio and limit their greenhouse gas emissions between 1990, reference year and 2012. This task enshrined in the United Nations Programme for the environment (UNEP), who in its report Geo-5 released in June 2012, on the eve of the Rio+20Conference, considered 90 objectives internationally recognized in the field of sustainable human development and environmental management. With this occasion, UNEP concluded that, 20 years after the Rio Earth Summit in 1992, the planet should urgently reorient its.

At communitarian level, the Amsterdam Treaty from 2 October 1997 brought modifications to the 6th article of the Constitutive Treaty of the European Community. The new 6th article establishes that the integration of the environmental situation within the communitarian policy is the main way to ensure the durable development. In fact it is necessary for a vertical approach on the subject, by implementing legal, systematic provisional measures in the environmental field, but also a horizontal approach of such a nature that the situation regarding the environment would be attached at the level of all of the communitarian policies. The European Commission in cooperation with the Council of Europe elaborated the strategy of realization of article 6 of the European Community Treaty, identifying the necessary steps for implementation of the horizontal approach. Beyond the adoption of effective legal measures, in accordance with the Vth European Communities Plan of action - 1993\2000 – (Duțu, 2008, 2012), the fulfillment of an efficient and durable development presumes the adoption of certain economical instruments that allow a compatible ecological production and that contributes to the improvement of the environment, and to the effectiveness of the action instruments on a horizontal aspect. In this sense, the evaluation of the impact upon the environment is necessary. Moreover, the planning, informing and education of the public and of the consumers in a direction that underlines the idea of a moderate usage of environmental natural resources is also required.

The protection and durable development has to be taken into consideration in establishing the line of action at the level of the whole communitarian process, establishing exigencies regarding the information about the objectives on long and short teen that are looked after in all five domains that have an impact on the environment: industry, tourism, energy, transport and agriculture.

The sixth Environmental Action Program (2001/2010) that was adopted in 2001 through the common Decision of the European Parliament and of the Council of the European Union (Named Environment 2010, “Our future our choice” - see for a detailed presentation Cosmin Dragos and Velisu, *Introducere in politica de mediu a Uniunii Europene*, 2004) from 22 July 2002, underlines some new steps in the vertical and also horizontal strategy approach, regarding the environmental problem and the accomplishment of the development strategy objectives:

- the observation and effectiveness regarding the application of the dispositions that concern the environment, by ensuring the human relations, financial and logistic of the IMPEL satellite network systems from the candidate states to the European Union; by adopting a strategy of identifying the modules of application by member states or on their way to becoming members, or of those who assumed international obligations in this sense; by improving control standards and associating this with the exigencies of environmental protection; by combating and preventing infractions directed towards the environment; by way of claims in front of communitarian courts regarding environmental issues.

- cooperation with the individuals, as well as endorsing social responsibility in environmental affairs, especially insisting on the aspect of their information;

- the profound integration of the environmental principles in all communitarian policies, with the attention being drawn to the management and planning of the landscape usage;

- the accomplishment and enhancement of a partnership with the business domain, insisting on several lines of action, such as: the promotion of the more efficient way of collecting EMAS; the encouragement of companies to conduct transparent and informational activities regarding the manner in which environment related provisions are being implemented; the promotion of an incorporated policy of products, required for an ecological market; the utilization and the evaluation of the ecological label usage; the promotion of ecological investments; the adoption of an environmental legislation.

Considering this Environmental Program, one can draw the conclusions that the European Union is promoting the environmental objectives beyond the borders of the member states, aspect which alone constitutes a more efficient way of spreading the community's policies with the purpose of accomplishing a durable development.

Within the European Community, the environmental protection and durable development policies represent an essential component of the long and medium term policy that is the source of the durable development of the European Community. The main objectives of EU policies encompass the protection of the environment through economic and legislative instruments, as well as the implementation of adequate measures in order to efficiently countervail pollution. The European Community is elaborating and supporting its environmental policies based on technical and scientific data, also taking the concrete environmental conditions of the different E.U. regions into consideration. After the Treaty of Lisbon has been enforced, the European Parliament has resolutely asserted itself as a co-legislator with extended competence in the environmental protection area, exerting a democratic control over all the European institutions. Regarding the environmental protection against the big problem that is global warming, this is currently a prime area of cooperation and international regulations, which assumes a global or across the borders dimension (Dalmedico & Guillemot, 2006). The persistence, causes and inter-temporal nature of global warming, call for regional and global actions of prevention. In this context, the European Parliament adopted a Resolution on 11 March 2009 on EU strategy, for a comprehensive climate change agreement in Copenhagen and the adequate means of financing for a climate change policy.

The third Conference in the field of climate change, held in Kyoto, Japan in 1997 (Petit, 2002), represented a step forward in addressing climate change. At the 15th International Conference of the Parties, held in December 2009 in Denmark, Copenhagen, was signing an Agreement that establishes the overall legal and institutional steps toward a final Accord, which ended in 2012.

The concept of sustainable environmental development was developed in several stages, in conjunction with sector areas. Thus, with regard to forests, this concept has been promoted for the first time at global level in a categorical and relevant manner in the context of concerns and documents relating to the concept of sustainable

development, at the World Conference of Rio in 1992. In the light of the decline of world forests, on this occasion the Statement of principles for the Sustainable Management of Forests was adopted, document that regulates the principles of forests sustainable development in agreement with the conservation of the environment. This statement aroused the interest and responsibility of many Governments towards their forests, by adopting plans and programmes in the sense (for example, the French National Plan for the sustainable administration of forests from 1994, the Principles for a Global Agreement on the Management of the Conservation and Sustainable Development of Forests). At the 1993 Helsinki Conference, the General Declaration on the protection of forests in Europe was elaborated, document in which some general principles relating to the development and sustainable management of forests were formulated. Later on, in March 1999, with the occasion of the Ministerial Meeting responsible for aspects relating to the sustainability of forests the Rome Declaration concerning forests was adopted, which includes a series of principles and measures aimed at developing, improving and protecting forest land.

Sustainable forest development and management require the partnership of all the nations of the world, the only capable of ensuring a comprehensive and efficient economy. The protection and sustainable development of forests represent a concept that has gained multiple valences in recent years, because of the importance given to the forest by the participants in the social process (Liagre, 1997). The great importance of sustainable development of forests is also given by the overall economic development and political transformations that take place both at the global and national levels.

Romanian legislation offers many legal guarantees for the existence and sustainable development of forests. Therefore, the Romanian Forestry Code of 2008 – the specific legal source in all forestry matters, contains provisions that establish that all activities having a bond with forestry are preceded by steps of prevention, for the preservation and the development of forests; it has proved to be receptive to the principles of environmental and forest law, formulated by international and European regulations and adopted at a scholarly level and introduced the concept of sustainable development of forests (Lupan, 2009; Dogaru, 2008)

Environmental protection problems are a challenge for which there is no single policy, but the combination of existing opportunities and increase of efficiency in all social and economic areas of states would contribute to solving the problem of resources and distribution. Environmental protection is currently a principal area of cooperation and international regulations, which assumes a global or across borders dimension. The persistence, purpose and inter-temporal nature of environmental problems, call for global actions of prevention.

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